

MATTHEW REARDON

VS

CAUSE NO: L17-233

ORDER OF DISMISSAL-STALE CASE

Pursuant to the provisions of Rule 2.02, Uniform Rules of the Circuit Court and Rule 41, Mississippi Rules of Civil Procedure, and for the reason that no step has been taken to prosecute or pursue this action for over one year IT IS, THEREFORE,

ORDERED AND ADJUDGED that this action be, and the same is hereby:

- (1) dismissed without prejudice; and
- (2) all costs accrued to the date hereof are hereby taxed against the Plaintiff; and
- (3) the Clerk of this Court shall mail a copy of this ORDER to the Attorneys of record, together with a certificate of service, and proper entry of same shall be entered on the docket; and
- (4) this ORDER OF DISMISSAL shall become effective (30) days from the ddate of the Clerk's certificate of service, UNLESS prior to expiration thereof, this action is re-instated upon the docket upon proper Motion filed in this action and an ORDER is entered granting same. If after expiration date there will ba a \$85.00 reinstatement fee.

ORDERED AND ADJUDGED this 30th day of November 2018

Andrew K. Humes

CIRCUIT COURT JUDGE

CLERK'S CERTIFICATE OF SERVICE

I hereby certify that I have hand delivered or mailed by U.S. Mail, First Class, prepaid, to:

NAME: Kristian McCray
 ADDRESS: Post Office Box 2532
 ADDRESS: _____
 ADDRESS: Oxford, MS 38655

NAME: _____
 ADDRESS: _____
 ADDRESS: _____

a true and correct copy of the above and foregoing ORDER OF DISMISSAL on this the 30th day of November 2018, and have made a proper entry of the same upon the docket.

BARETTA MOSLEY, CIRCUIT CLERK

BY: *Sam Potts* D.C.

FILE THIS THE 30th DAY OF Nov, 2018
 MINUTE BOOK CMB 24 PAGE 2751
 BARETTA MOSLEY, CIRCUIT CLERK
 BY *S. Potts* D.C.

